

[*200] *were a *feme sole* (a). In the Irish Act, 4 & 5 W. 4, c. 92, s. 68, the word "disclaim" was expressly introduced. And now, by 8 & 9 Vict. c. 106, s. 7, a married woman is enabled, in like manner, to "disclaim" any estate or interest in lands in England. But the disclaimer must be by deed, and the husband must concur, and the *feme covert* must make the statutory acknowledgement. [Whether under the Married Women's Property Act, 1882 (b), a married woman can disclaim, is also doubtful; and it will be prudent, in all cases coming within 8 & 9 Vict. c. 106, s. 7, to comply with the formalities required by that act.]

14. **Effect of disclaimer.**—The effect of disclaimer by a trustee, where there is a co-trustee, is to vest the whole *legal estate* in the co-trustee (c): and, as regards the exercise of the *office*, even if the trust be accompanied with a power, the continuing trustee may administer the trust without the concurrence of the trustee who has chosen to disclaim, and without the appointment of a new trustee (d). The settlor, it is said, must be presumed to know what the legal consequence of the death or disclaimer of one of the trustees would be (e). And when the disclaimer has been executed, it operates retrospectively, and makes the other trustee the sole trustee *ab initio* (f).

15. **Disclaimer of personal contracts.**—But in *personal contracts* the rule is different, for where A. covenants with B., C., and D. as trustees, and B. disclaims, C. and D. do not take the joint covenant, and cannot sue without B. (g).

16. **Disclaimer of protectorship.**—If trustees are appointed *protectors* of the settlement, and they intend to disclaim the

(a) 3 & 4 W. 4, c. 74, s. 77.

[(b) 45 & 46 Vict. c. 75.]

(c) Bonifant v. Greenfield, Crow. Eliz. 80; Crewe v. Dicken, 4 Ves. 100, per Lord Loughborough; Small v. Marwood, 9 B. & C. 299; Freem. 13, case 111; Hawkins v. Kemp, 3 East, 410; Townson v. Tickle, 3 B. & Ald. 31; Browell v. Reed, 1 Hare, 435, per Sir J. Wigram; and see Nicloson v. Wordsworth, 2 Sw. 369.

(d) Adams v. Taunton, 5 Mad. 435; Cooke v. Crawford, 13 Sim. 96; Bayly v. Cumming, 10 Ir. Eq. Rep. 410; Hawkins v. Kemp, 3 East, 410; White v. M'Dermott, 7 I. R. C. L. 1.

(e) Browell v. Reed, 1 Hare, 435, per Sir J. Wigram.

(f) Peppercorn v. Wayman, 5 De G. & Sm. 230.

(g) Wetherell v. Langston, 1 Exch. 634.